

County Exclusive Probate Intelligence Agreement

Founding County Partner Terms for exclusive probate-related real-estate opportunity research

Business Summary

This Agreement is designed for a founding county partner that wants a protected territory for probate-related real-estate opportunity research. Provider will research, qualify, prioritize, and deliver completed opportunity files in the Exclusive Territory so Client can focus on compliant outreach, diligence, and acquisition execution.

The founding partner structure protects Client's access to Provider's completed files in the county while preserving Provider's ability to operate outside the agreed territory, client category, and contract term.

This County Exclusive Probate Intelligence Agreement, the **"Agreement,"** is entered into as of _____, the **"Effective Date,"** by and between the following parties:

Provider: _____

Client: _____

Exclusive Territory: _____ County, _____

Provider and Client may each be called a **"Party"** and together the **"Parties."**

Services, Fees, and Exclusivity

1. Services

Provider will use commercially reasonable research practices to identify, qualify, prioritize, and deliver probate-related real-estate opportunity files within the Exclusive Territory.

Depending on available public and third-party records, a file may include:

- Probate case and property information
- Ownership structure
- Personal representative, executor, administrator, heir, or stakeholder information
- Likely decision-maker and confidence level
- Available contact information
- Priority score and research notes
- Supporting evidence

- Known authority, title, heir, or complexity indicators

Provider supplies research and business intelligence only. Provider does not provide legal, title, brokerage, fiduciary, appraisal, tax, financial, or investment advice and does not represent any estate, heir, property owner, seller, buyer, or governmental body.

2. Completed Opportunity

An opportunity counts toward Client's monthly capacity only when Provider delivers a file containing:

1. An identified probate matter;
2. A matched real-property interest;
3. Researched ownership information;
4. An identified or reasonably inferred decision-maker or controlling stakeholder;
5. A priority score; and
6. Supporting sources or an evidence trail.

Provider may label authority or decision-maker status as:

- **Confirmed authority**
- **Likely decision-maker**
- **Stakeholder requiring verification**
- **Authority unresolved**

A filing that cannot be matched to relevant real property does not count as a completed opportunity.

3. Plan and Fees

Plan: Founding County Partner

Monthly Fee: \$3,000, paid monthly in advance

One-Time Setup Fee: \$2,000, due before onboarding begins

Included Capacity: 40 completed opportunities per month

Overage Rate: \$75 per approved completed opportunity

Delivery Schedule: Weekly delivery, plus high-priority alerts when available

The setup fee compensates Provider for onboarding, source configuration, workflow preparation, and initial territory setup. The setup fee is earned when onboarding begins and is non-refundable.

Monthly fees are due in advance on the first day of each service month unless Schedule A states otherwise. Invoices for monthly fees are due upon receipt. Invoices for approved overage charges and other non-recurring charges are due within seven days after issuance.

Past-due amounts may accrue interest at the lesser of **1.5% per month** or the maximum lawful rate.

Provider will notify Client when usage reaches approximately 80% of included capacity. Provider will not incur billable overages without Client's written approval or a written preapproved overage limit.

Unused monthly capacity does not roll over.

4. County Exclusivity

While Client is current on payment and not in material breach, Provider will not deliver the same completed opportunity files to another residential real-estate wholesaler competing in the Exclusive Territory during the Agreement term.

Exclusivity:

- Applies only to the named county and residential wholesaler category;
- Covers Provider's completed files, not underlying public records or independently sourced information;
- Does not guarantee that an opportunity is unavailable from another source;
- Does not prevent Provider from serving other counties, noncompeting buyer categories, attorneys, estate-service businesses, title or research clients, or other lawful users; and
- Does not prevent Provider from working with a party that independently discovered the same person, case, or property without receiving Provider's completed file.

Exclusivity is suspended during non-payment and ends immediately upon termination or expiration.

Use, Responsibilities, and Protections

5. Client Responsibilities and Permitted Use

Client receives a limited, nonexclusive, nontransferable license to use delivered files internally for lawful evaluation and acquisition activities in the Exclusive Territory.

Client will:

- Independently verify material information before relying on it;
- Conduct its own legal, title, property, valuation, and investment due diligence;
- Use information only for legitimate business purposes;
- Comply with applicable real-estate, advertising, privacy, consumer-protection, telephone, text-message, email, do-not-call, and solicitation requirements;
- Obtain any required consent, license, registration, or approval;

- Maintain reasonable information-security controls; and
- Provide weekly disposition reporting for performance measurement.

Client will not resell, sublicense, publish, distribute, or disclose delivered files to a competitor or unrelated third party.

Client will not use delivered files to bypass, reverse engineer, scrape, replicate, or commercially reproduce Provider's research process, source maps, scoring system, workflows, or opportunity files. Client will not provide delivered files to another party for the purpose of creating a competing probate-intelligence product or service.

Client is solely responsible for its outreach, statements, offers, contracts, acquisitions, and communications with property owners and other parties.

6. Data Sources and No Guarantee

Provider may rely on public records and third-party sources that can be incomplete, delayed, inconsistent, or inaccurate.

Provider will use commercially reasonable research practices but does not warrant that information is error-free, current, complete, or sufficient to establish:

- Legal authority
- Ownership
- Marketability
- Contactability
- Property condition
- Value
- Clear title

Provider does not guarantee seller contact, responses, appointments, offers, contracts, closings, revenue, savings, or profit.

Client acknowledges that acquisition results depend on market conditions, record availability, Client's diligence, outreach, negotiation, financing, and other factors outside Provider's control.

7. Confidentiality and Intellectual Property

Each Party will protect the other Party's nonpublic business, technical, pricing, customer, and operational information using reasonable care. Confidential information may be used only to perform this Agreement.

Confidentiality does not apply to information that:

- Becomes public through no breach;
- Was already lawfully known;

- Is independently developed;
- Is lawfully received without restriction; or
- Must be disclosed by law.

When legally permitted, the receiving Party will provide reasonable notice before a required disclosure.

Provider retains all rights in its:

- Research methods
- Source maps
- Templates
- Scoring systems
- Databases
- Workflows
- Software
- Quality controls
- Operating procedures

Client owns its preexisting materials and client-specific confidential information.

Payment does not transfer Provider's intellectual property. Confidentiality, restricted-use, and intellectual-property obligations survive termination.

8. Independent Contractors

The Parties are independent contractors.

This Agreement does not create an:

- Employment relationship
- Agency
- Brokerage relationship
- Fiduciary relationship
- Partnership
- Franchise
- Joint venture

Neither Party may bind the other.

9. Indemnification

To the extent permitted by law, Client will defend, indemnify, and hold Provider and its personnel harmless from third-party claims, damages, penalties, and reasonable costs arising from Client's:

- Outreach or marketing activity;

- Statements, offers, contracts, acquisitions, or property-related activity;
- Unlawful or unauthorized use or disclosure of information;
- Violation of law or third-party rights; or
- Material breach of this Agreement.

Provider will promptly notify Client of a covered claim and reasonably cooperate in the defense.

Client may not settle a claim in a way that admits fault by or imposes obligations on Provider without Provider's written consent.

Term, Liability, and General Terms

10. Term, Renewal, and Termination

Initial Term: 90 days, unless changed in Schedule A by written agreement of the Parties.

After the Initial Term, this Agreement renews month to month unless Schedule A states otherwise.

Either Party may stop a month-to-month renewal by giving 30 days' written notice before the next renewal date.

Either Party may terminate for material breach if the breach is not cured within 10 days after written notice.

Provider may suspend service for non-payment. Provider may terminate immediately for unlawful use, unauthorized redistribution, material information-security risk, or conduct that could reasonably expose Provider to regulatory or third-party liability.

Upon termination:

- Exclusivity ends;
- Future service obligations end;
- Earned and unpaid charges remain due;
- Client must stop prohibited use and distribution;
- Each Party will return or securely destroy the other Party's confidential information upon reasonable request, subject to legal retention requirements; and
- Provisions intended to survive will remain effective.

Unless Schedule A states otherwise, setup fees are non-refundable and prepaid monthly fees are non-refundable except as expressly provided in this section.

If Provider terminates without Client breach before completing a prepaid service period, Provider will refund the unused prorated portion of the monthly fee.

11. Limitation of Liability

To the maximum extent permitted by law, neither Party will be liable for indirect, incidental, special, exemplary, punitive, or consequential damages, including:

- Lost profits
- Lost opportunities
- Lost data
- Lost goodwill
- Business interruption

Provider's total aggregate liability arising from this Agreement will not exceed the fees Client paid Provider during the **three months immediately preceding the event giving rise to the claim**.

These limitations do not apply where liability cannot lawfully be limited.

The limitations in this section do not limit liability to the extent the limitation is prohibited by applicable law, and do not limit any other exception expressly stated in this Agreement.

12. General Terms

Governing Law: State of _____

Exclusive Venue: County of _____, State of _____

Before filing a lawsuit, the Parties will attempt in good faith to resolve the dispute through direct negotiation.

Either Party may seek urgent injunctive relief to protect confidential information, data, or intellectual property.

Notices must be sent by email and one additional written method to the notice contacts listed in the signature blocks or another address a Party designates in writing. Notice is effective upon confirmed receipt.

Neither Party may assign this Agreement without the other Party's written consent, except in connection with a merger, reorganization, sale of substantially all assets, or transfer to an affiliate that assumes this Agreement.

Neither Party is liable for delay caused by events beyond its reasonable control, except payment obligations.

If one provision is unenforceable, the remaining provisions remain effective. A waiver must be in writing and applies only to the specific matter waived.

This Agreement and Schedule A represent the entire agreement between the Parties concerning the services and replace prior discussions or representations.

If there is a conflict between the body of this Agreement and Schedule A, Schedule A controls for commercial terms, including territory, fees, included capacity, overage authorization, delivery cadence, renewal, and price-lock terms. The body of this Agreement controls for legal, confidentiality, use, liability, and general terms unless Schedule A expressly states otherwise.

Amendments must be in writing and signed by both Parties. Electronic signatures and counterparts are enforceable to the extent permitted by law.

13. Payment Authorization and Billing Contact

Notice Contact Name: _____

Notice Email: _____

Notice Mailing Address: _____

Billing Contact Name: _____

Billing Email: _____

Authorized Payment Method: ☐ ACH ☐ Card ☐ Wire ☐ Other: _____

Client authorizes Provider to invoice and collect the setup fee, recurring monthly fees, and any approved overage charges according to this Agreement and Schedule A.

14. Signatures

Provider

By signing below, each Party agrees to be bound by the terms of this Agreement, including Schedule A.

Legal Name: _____

By: _____

Name and Title: _____

Email: _____

Date: _____

Client

Legal Name: _____

By: _____

Name and Title: _____

Email: _____

Date: _____

Schedule A

Founding County Partner

Commercial Term	Agreement
Exclusive Territory	_____ County, _____
Client Category	Residential real-estate wholesaler
Initial Term	90 days
Setup Fee	\$2,000, due before onboarding begins
Monthly Fee	\$3,000, paid monthly in advance
Included Capacity	40 completed opportunities per month
Approved Overage Rate	\$75 per completed opportunity
Overage Authorization Limit	\$_____ per month
Delivery	Weekly delivery, plus high-priority alerts when available
Client Feedback	Weekly disposition reporting requested for performance measurement
Renewal	Month to month after the Initial Term unless otherwise agreed in writing
Founding Price Lock	Through _____, provided Client remains current on payment and not in material breach.